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The distinction between the legal practice in Natal and that in the Transvaal was that in Natal there was a joint bar; a barrister, whilst he was admitted to the rank of advocate, could also practice as an attorney; whereas in the Transvaal, as in Bombay, the spheres of attorneys and advocates were distinct. A barrister had the right of election whether he would practise as an advocate or an attorney. So whilst in Natal I was admitted as an advocate, in the Transvaal I sought admission as an attorney. For as an advocate I could not have come in direct contact with the Indians and the white attorneys in South Africa would not have briefed me.

But even in the Transvaal it was open to attorneys to appear before magistrates. On one occasion, whilst I was conducting a case before a magistrate in Johannesburg, I discovered that my client had deceived me. I saw him completely break down in the witness box. So without any argument I asked the magistrate to dismiss the case. The opposing counsel was astonished, and the magistrate was pleased. I rebuked my client for bringing a false case to me. He knew that I never accepted false cases, and when I brought the thing home to him, he admitted his mistake, and I have an impression that he was not angry with me for having asked the magistrate to decide against him. At any rate my conduct in this case did not affect my practice for the worse, indeed it made my work easier. I also saw that my devotion to truth enhanced my reputation amongst the members of the